FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA

Parenting Questionnaire



Introduction

Unless you are required to file an affidavit, you must file this Questionnaire with your *Initiating Application (Family Law)* or your *Response to Initiating Application (Family Law)* in a parenting proceeding.

You have a duty to the Court and each other party under Rules 6.01 and 6.05 of the *Federal Circuit and Family Court of Australia (Family Law) Rules 2021* to give full and frank disclosure of all information relevant to the case in a timely manner.

You must sign and date each page of the Questionnaire. Attach extra pages if you need more space to answer any questions.

You must also sign the statement of truth on the last page of the Questionnaire.

The other party will also complete the same Questionnaire, unless an affidavit is required to be filed.

NOTE: If you consider that answering a question in this form could put your safety at risk, you do not have to provide details. Please insert 'Nil answer due to risk concerns'.

Some tips for completing this Questionnaire

1 **DO raise any concerns you may have about your own or your children's safety with the judge or registrar at the earliest possible moment.**

2 **DO** complete the Questionnaire yourself, in your own words.

3 **DO** think about your answers from the viewpoint of what is in the best future interests of your child/ren. Try to put yourself in your children's shoes and answer in a way that tells the Court what you think the children want the situation to be. Your children have a right to know and be cared for by both parents and will usually want to maintain the best possible relationship with both.

4 **DO** put aside your differences and think about the future. Approach the job of completing this Questionnaire not from a position of 'winning' or 'punishing' the other party but think about how you can help the Court find the best solution for all concerned.

REMOVE THIS PAGE BEFORE FILING

Parenting Questionnaire

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – rule 8.09

Please type or print clearly and mark [**X**] all boxes that apply. Attach extra pages if you need more space to answer any questions.

COURT USE ONLY

Client ID _____

File number

Filed at

Filed on _____

Court location

Part A About your circumstances now

1. Your full name and occupation

Stephen Christopher Cooke

1. What is your relationship to the children in this case?

☐ Mother
☒ Father
☐ Grandparent
☐ Other relative (state relationship) _____
☐ Other (give details) _____

2. Are you in paid employment?

☒ **No**

☐ **Yes** WHAT IS THE NAME OF YOUR EMPLOYER AND AT WHAT ADDRESS DO YOU WORK?*

Employer name

Employer address

State Postcode

***If you consider that answering this question could put your safety at risk, you do not have to provide these details.**

3. What are your hours of work?

_____ hours per day adding up to _____ hours per week

Usually between _____ am/pm and _____ am/pm.

Signature:_____ Date:____/____/_____

4. On which days of the week do you work?

_____

5. How long does it take you to travel to and from where you work?

_____minutes/hours

6. If you are not in paid employment, what is the source of your financial support?

7. Do you own your own home?

☒ **Yes**

☐ **No**

8. If no, do you rent your home, are you boarding or other?

☐ Rent

☐ Board

☐Other, provide description:

9. Who else usually lives at this home with you or regularly visits and stays overnight? Please provide their name, age and relationship to you.

Until the last few days the children and Respondent lived with me. The Respondent has relocated and I am applying to have the children returned.

10. Do you suffer from any medical condition which requires supervision by a medical practitioner or for which you take prescribed medication or which could affect your ability to supervise and care for a child? If so, please provide details.

No

Signature:_____ Date:____/____/ 2023

11. Do you now have or have you in the past had any problems with drug or alcohol abuse?
If so, please provide details.

No

12. Have you or any person with whom the child resides or has contact:
    - been involved in child welfare proceedings in a State or Territory Court or been the subject of notification to and/or investigation by any child welfare authority?
    - been found to have breached orders
    - committed an offence under the *Family Law Act*? If so, please provide details.

No

Part B About safety issues

13. Are there any current Family Violence Orders in the State or Territory in which you are currently residing or any other State or Territory, or have there been any in the past which affect you, any of the children in this case or a member of the child/ren's family? If so, please provide details.

No

14. Do you have any concerns about being hurt, threatened or intimidated while you are attending Court?

    ☒ **No**

    ☐ **Yes,** please provide details:

15. Are you comfortable being in the same room as the other party?

    ☒ **Yes**

    ☐ **No**

16. Do you have any other concerns about your safety or the children's safety other than while attending Court? If yes, what are those concerns?

    ☐ **No**

    ☒ **Yes**

I have concerns for the safety of the children. The mother has unilaterally removed them from the home and has been physically violent towards them in the past.

Signature:_____ Date:____/____/ 2023

Part C The current parenting arrangements

17. What are the names and ages of the children this case is about?

	Family Name	Given Names	Age
Child 1:	Cooke	Joshua Finn	6
Child 2:	Cooke	Christian Finn	9
Child 3:			
Child 4:			

IF MORE, PLEASE ATTACH A LIST

18. Is there another parent who is NOT a party to the case?

☒ **No**

☐ **Yes,** please provide details:

Name

Address

State Postcode

ANSWER THE FOLLOWING QUESTIONS SEPARATELY FOR EACH CHILD WHERE THE ANSWERS ARE DIFFERENT. EITHER ADD AN EXTRA PAGE OR PHOTOCOPY THESE PAGES BEFORE YOU START WRITING ON THEM	**Example of answer Item 29** SLEEPING Child 1: own room Child 2 & 3: shared Child 4: own room	**Please try to keep answers to your questions as short as possible as per this example**

19. What is the address at which the children currently live most of the time?

Address

I am unsure where they currently are however the reside with me at

213 Morgan Street, Merewether

State NSW Postcode 2291

Signature:_____ Date:____/____/ 2023

20. Who else other than the children listed in Item 18 lives, or regularly stays at, the address referred to in Question 20 with the children and what is their relationship to you and/or the children? **Do not include the other children listed in Item 18.**

Name _____
Relationship to you _____
Relationship to children _____

21. How much time do the children currently spend with each parent/party?

Until the weekend they were living with both parents.

22. How long have the above living arrangements been in place?

Since their birth

23. What is the distance between your home and the home of the other parent/party?

Unknown

24. How do the changeovers between you and the other parent/party take place?

Not known

25. Do you have a motor vehicle available for your use most of the time?

☒ **Yes**

☐ **No** IF NOT, HOW DO YOU TRANSPORT YOURSELF AND/OR CHILDREN?

26. While the children are spending time with you do they have any communication with the other parent/party?

☐ **No**

☒ **Yes**, please provide details:

I intend for them to be able to communicate with the other parent at liberty

Signature:_____ Date:____/____/ 2023

27. Do the children spend time or communicate with other extended family members such as grandparents, aunts and uncles etc?

☐ **No**

☐ **Yes** HOW MUCH, HOW OFTEN AND WITH WHOM?

Auntie Angela, Canada via Signal or Alexia. Once every fortnight for 30-45mins
Grandma & Grandpa, Canada via Signal or Alexia. Once every fortnight for 30-45mins
Unkle Dave, Canada via Signal or Alexia. Once every fortnight for 30-45mins

28. Describe the current accommodation and arrangements for the children when they are with you, including sleeping, entertainment, homework support, if relevant, and other facilities for them.

SLEEPING (e.g. own room, room shared with other children, etc)

Christian has his own room, bedding and sheets
Joshua has his own room, bedding and sheets

ENTERTAINMENT

3 TV's, Video Games, iPads, Trampoline in backyard, Puzzles

HOMEWORK SUPPORT (IF RELEVANT)

Yes, we do homework Monday to Friday before breakfast at the kitchen counter

OTHER FACILITIES FOR THE CHILDREN

Play Area, Study Corner, Art and Craft Station, Outdoor Play Space, Family Board Games Shelf, Family Calendar, Books

Signature:_____ Date:____/____/ 2023

CHILD CARE ARRANGEMENTS

29. If the children are staying with you at any time when you work away from the home what are the arrangements for their care while you are at work?

I am available to care for the children at all times. This has been my role.

30. What are the arrangements for supervising your children during school holiday periods when they are staying with you?

As above.

SCHOOLING

31. If applicable, what school/s do the children attend, and what class/year?

	Childs name	**School**	**Class/year**
Child 1:	Joshua	Merewether Heights	34MC/3
Child 2:	Christian	Merewether Heights	1C
Child 3:			
Child 4:			

IF MORE, PLEASE ATTACH A LIST

32. How long does it currently take the children to travel to and from school?

5 minitue walk. We walk to and from everyday.

33. How do the children travel to and from school when they are staying with you?

5 minitue walk. We walk to and from everyday.

34. What are the current before and after school care arrangements for the children while they are staying with you?

Homework, Breakfast, Pack lunches, Brush teeth, groom nails, bath, dress, medication, Sunscreen/Bugscreen
Make dinner. Unpack bags, cleanup lunchbages. Talk to the kids about their day.

35. Is there anything special about the child's schooling requirements or arrangements that the Court should know about?

☐ **No**

☒ **Yes** PLEASE SPECIFY:

Christian has ADHD.

Signature:_____ Date:____/____/ 2023

36. Do the children have any regular out of school activities, such as social activities, hobbies, sporting including weekend activities?

☐ **No**

☒ **Yes**, PLEASE SPECIFY. INCLUDE HOW THEY ARE ASSISTED BY YOU AND THE OTHER PARTY TO BE INVOLVED.

Wednesday 5:30pm-6:00pm Both children have swimming lessons at Arnolds Swim Centre.
Thursday Mornings, Christian has Drum Lessons at Merewether Heights and needs to be at school for 9:00am.
At 3:00pm on a Thursday I pick the kids up with the car from the "kiss and ride" zone at Merewether Height to take Joshua to his tennis lesson.

37. Please provide brief details of any close relationships any of the children have at their school and in the neighbourhood where you live.

HEALTH

38. Do the children have any health or medical problems, including any special dietary needs?
If so, please specify what these are and how they are managed.

Christian Cooke has been diagnoised with ADHD. Also has seasonal alergies/hay fever and Asthma
ADHD is managed with semi-annually vists with his Pediatrician he meets with his Pediatrician Dr. Alison Freeth. Occasionally Christian also meets with a Child & Adolescent Psychologist. Asthma is managed via Asthma management plan via GP Dr. Alex Tokin

39. Do the children require regular medication and/or frequent or regular visits to a medical practitioner or health worker?

☐ **No**

☐ **Yes,** PLEASE PROVIDE DETAILS

ADHD: ONE Ritlan 20mg per day.
Seasonal Hay Fever: ONE Children's Claritin per day and Alergy Eye Drops ONE drop in each eye as required.
Asthma: Pavtide MDI 50/25 TWO puff by mouth via spacer twice a day and Zempreon MDI 4-6 puffs by mouth via spacer.

Signature:_____ Date:____/____/ 2023

FINANCIAL SUPPORT

40. Do you pay/receive child support to/from the other parent?

☒ **No**

☐ **Yes** I pay/receive (DELETE WHICH DOES NOT APPLY) $_____ monthly in total for:

(INSERT CHILDREN'S NAME/S)

1. _____ 2. _____

3. _____ 4. _____

41. Is the child support collected by the Child Support Agency (CSA) or privately?

☐ CSA

☐ Private

42. Are there any amounts of child support owing to or from you?

☒ **No**

☐ **Yes** PLEASE PROVIDE DETAILS

43. Do you pay/receive any additional agreed payments for the child/children's financial support? (For example, school fees, medical expenses or insurance, etc.)

☒ **No**

☐ **Yes** PLEASE PROVIDE DETAILS

Signature:_____ Date:____/____/ 2023

Part D Future Parenting Arrangements

In making decisions about the future care arrangements for the child, the judge will want to consider a wide range of educational, social/relationship, environmental and economic factors that may affect the child's daily life. (If you intend the future arrangements to be the same as the current ones, write 'Same as current' for all questions 45 to 58 where relevant.)

44. Where do you propose the children will usually live in the future:

DURING SCHOOL TERMS

DURING WEEKENDS

DURING SCHOOL HOLIDAYS

Signature:_____ Date: ____/____/ 2023

45. Describe sleeping arrangements, entertainment, homework support if relevant, and other relevant facilities available for them when they live with you in the future, if these will be different from the current arrangements.

SLEEPING (eg. own room, room shared with other children, etc)

Same as current

ENTERTAINMENT

Same as current

HOMEWORK SUPPORT (IF RELEVANT)

Same as current

OTHER FACILITIES FOR CHILDREN

Same as current

Signature:_____ Date:____/____/ 2023

46. Who else will live in the home with the children where you propose the children will usually live? Include anyone who will live there full time or from time to time.

Name _____
Relationship to you _____
Relationship to children _____

47. Where will the children go to school, if this is to be different from the current arrangements?

	Childs name	School	Class/year	Time to travel to & from school each way
Child 1:	Christian Cooke	Same as current		
Child 2:	Christian Cooke	Same as current		
Child 3:				
Child 4:				

48. How will the children travel to and from school, if different from the current arrangements set out in Part C?

Same as current

49. How will the children be supervised before and after school, if different from the current arrangements set out in Part C?

Same as current

50. If the children are not of school age, what will the child care arrangements be, if different from the current arrangements set out in Part C?

Signature:_____ Date:____/____/ 2023

51. If you propose that the children are to live with you most of the time, what regular arrangements do you propose for them to spend time and communicate with the other parent or party, including during school holidays?

I propose that they spent alternate weekends, and half the school holidays with the Respondent Mother. There should be liberal telephone/video communication.

52. If you propose that the children live with the other parent most of the time, what arrangements do you propose for them to spend time and communicate with you, including during school holidays?

53. How will changeovers between homes take place with the other parent/party?

At school or by one parent delivering the children to the other at the conclusion of their time with the children.

54. Do you propose that the children maintain their relationships with their friends if they are going to move from the place they now mostly live?

☐ **No**

☒ **Yes** IF SO HOW?

Same as current

55. How will you help the children spend time and communicate with the other parent and/or other family members?

I will encourage the positive relationship between the children and all family members including the Respondent Mother by always speaking positively and making regular times for such time and communication to occur.

Signature:_____ Date:____/____/ 2023

56. If any of the children will require medical treatment while they are with you, what arrangements are you able to make for this treatment?

Same as current

57. In the future, what out of school activities do you anticipate the children will be involved in, and how will you help them to keep up with them?

Same as current

Part E Statement of truth

I believe that the facts contained in this Questionnaire are true.

I understand that a Judge of the Court and the other parties in the case will rely on the facts that I have set out in this Questionnaire as being true.

Your signature	_____ Place _____/_____/2023 Date

☐ Applicant

☐ Respondent

☐ Other (Specify) _____